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TAB 7



Board of Education Report

File #: Rep-066-24/25, Version: 1

Adoption of Resolution to Authorize Los Angeles Unified School District Representatives to Continue Performance of all Necessary Functions Related to Federal Emergency Management Agency and California Governor's Office of Emergency Services Financial Assistance Programs

October 22, 2024

Facilities Services Division

Action Proposed:

Adopt the attached Board of Education (Board) Resolution (Exhibit A) to authorize Los Angeles Unified School District (District) personnel to continue to perform all necessary functions related to Federal Emergency Management Agency (FEMA) and California Governor's Office of Emergency Services (Cal OES) financial assistance programs including the submittal of funding applications, administration of necessary grant-related activities, and the execution of instruments necessary, as legally permissible, to implement the requirements of the grants awards.

Background:

After a natural or man-made disaster event occurs, FEMA and Cal OES receive funding for their various financial assistance programs to help the public and public agencies with disaster recovery and mitigation efforts. These programs have allowed the District to be reimbursed for costs incurred by natural disasters and to receive funding for seismic mitigation projects that help ensure school facilities are safe learning environments.

Federal funds are awarded and managed by FEMA with Cal OES serving as the intermediating agency assisting the District with navigating the federal grant process to receive funds. Cal OES is also charged with the administration of the state disaster assistance program, which provides additional state-level financial assistance for costs incurred because of a declared disaster event. It is Cal OES' responsibility to ensure federal and state grant awards are being spent in compliance with federal (Public Law 93-288 as amended by the Robert T. Stafford Disaster Relief and Emergency Assistance Act of 199) and state law (California Disaster Assistance Act).

As the managing authority, Cal OES requires the Designation of Applicant's Agent Resolution for Non-State Agencies form to be renewed every three years. This resolution allows District personnel to perform necessary administrative and project activities related to FEMA and Cal OES financial assistance programs. The District's previously submitted resolution was approved by the Board of Education on December 7, 2021 and is set to expire on December 6, 2024.

Expected Outcomes:

Adopt the Resolution to permit staff to continue the performance of all necessary administrative and project activities related to FEMA and Cal OES financial assistance programs such as disaster relief, hazard mitigation, and other FEMA and/or Cal OES programs as listed in the resolution.

Board Options and Consequences:

Approval of this action will allow staff to proceed with the necessary administrative and project activities

related to federal and state financial assistance programs.

If the proposed action is not approved, staff will not be able to proceed with applying for funds through federal and state financial programs, forgoing any available grant funds through these programs, and would also not be able to submit documentation needed to remain compliant with existing grant and reporting requirements.

Policy Implications:

Staff's proposal advances Pillar 4 Operational Effectiveness of the 2022-26 Strategic Plan and fulfills Cal OES' requirement to obtain federal and state financial assistance.

Budget Impact:

Approval of this action allows the District to continue to request and manage federal and state funding to mitigate impacts to the General Fund, Bond Program Funds, and other District resources that are associated with natural and man-made disasters.

Student Impact:

Approval of this action allows the District to apply for and be compliant with grants that are awarded to improve and repair District facilities against natural and man-made disasters, thus improving students' access to a safe and healthy learning environment.

Equity Impact:

The grants awarded through federal and state programs support the District's Bond Program which is focused on improving equity between newer and older schools so that all students have an equal opportunity for success.

Issues and Analysis:

Adoption of this Resolution will enable the District to continue requesting and administering federal and state resources for disaster relief, hazard mitigation and other FEMA/Cal OES financial assistance to adequately respond to and recover from federal or state declared disasters.

Attachments:

Exhibit A - Cal OES Form 130 Designation of Applicant's Agent Resolution for Non-State Agencies

Informatives:

None.

Submitted:

09/22/24

RESPECTFULLY SUBMITTED,**APPROVED BY:**
ALBERTO M. CARVALHO
Superintendent
PEDRO SALCIDO
Deputy Superintendent,
Business Services and Operations**REVIEWED BY:****APPROVED AND PRESENTED BY:**
DEVORA NAVERA REED
General Counsel
KRISZTINA TOKES
Chief Facilities Executive
Facilities Services Division

☒ Approved as to form.

REVIEWED BY:
NOLBERTO DELGADILLO
Deputy Chief Financial Officer

☒ Approved as to budget impact statement.

STATE OF CALIFORNIA
GOVERNOR'S OFFICE OF EMERGENCY SERVICES
Cal OES 130

Cal OES ID No: _____

DESIGNATION OF APPLICANT'S AGENT RESOLUTION FOR NON-STATE AGENCIES

BE IT RESOLVED BY THE Board of Education of THE Los Angeles Unified School District THAT
(Governing Body) (Name of Applicant)

Chief Facilities Executive, OR
(Title of Authorized Agent)

Deputy Chief Facilities Executive, OR
(Title of Authorized Agent)

Director of Facilities Program Support Services, OR
(Title of Authorized Agent)

Deputy Director or Facilities Program Support Services, OR
(Title of Authorized Agent)

Director of Facilities Legislation, Grants and Funding, OR
(Title of Authorized Agent)

Deputy Director of Facilities Legislation, Grants and Funding
(Title of Authorized Agent)

is hereby authorized to execute for and on behalf of the Los Angeles Unified School District, a public entity
(Name of Applicant)

established under the laws of the State of California, this resolution and to file it with the California Governor's Office of Emergency Services for the purpose of obtaining financial assistance for any existing or future grant program, including but not limited to any of the following:

- Federally declared Disaster (DR), Fire Mitigation Assistance Grant (FMAG), California State Only Disaster (CDAA), Immediate Services Program (ISP), Hazard Mitigation Grant Program (HMGP), Building Resilient Infrastructure and Communities (BRIC), Legislative Pre-Disaster Mitigation Program (LPDM), under
- Public Law 93-288 as amended by the Robert T. Stafford Disaster Relief and Emergency Assistance Act of 1988, and/or state financial assistance under the California Disaster Assistance Act.
- Flood Mitigation Assistance Program (FMA), under Section 1366 of the National Flood Insurance Act of 1968.
- National Earthquake Hazards Reduction Program (NEHRP) 42 U.S. Code 7704 (b) ((2) (A) (ix) and 42 U.S. Code 7704 (b) (2) (B) National Earthquake Hazards Reduction Program, and also The Consolidated Appropriations Act, 2018, Div. F, Department of Homeland Security Appropriations Act, 2018, Pub. L. No. 115-141
- California Early Earthquake Warning (CEEW) under CA Gov Code – Gov, Title 2, Div. 1, Chapter 7, Article 5, Sections 8587.8, 8587.11, 8587.12

THAT the Los Angeles Unified School District, a public entity established under the laws of the State of California,
(Name of Applicant)

hereby authorizes its agent(s) to provide to the Governor's Office of Emergency Services for all matters pertaining to such state disaster assistance the assurances and agreements required.

Please check the appropriate box below:

☒ This is a universal resolution and is effective for all open and future disasters up to three (3) years following the date of approval below.

☐ This is a disaster specific resolution and is effective for only disaster number(s) _____

Passed and approved this 22nd day of October, 2024

George McKenna Board Member
(Name and Title)
Rocio Rivas Board Member
(Name and Title)
Scott Schmerelson Board Member
(Name and Title)
Nick Melvoin Board Member
(Name and Title)

Jackie Goldberg Board Member
(Name and Title)
Kelly Gonez Board Member
(Name and Title)
Tanya Ortiz Franklin Board Member
(Name and Title)

CERTIFICATION

I, Michael A. McLean, duly appointed and Executive Officer of the Board of Education of Los Angeles Unified
(Name) (Title)
School District Board of Education, do hereby certify that the above is a true and correct copy of a Resolution
(Name of Applicant)
passed and approved by the Board of Education of the Los Angeles Unified School District on the 22nd day of
(Governing Body) (Name of Applicant)
October, 2024.

(Signature)

Executive Officer of the Board of Education
(Title)